

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: 160/2026

"X"
16/04/2026
TRB

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.

2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not

limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.

2.6 The respondent is to pay the costs of this application.

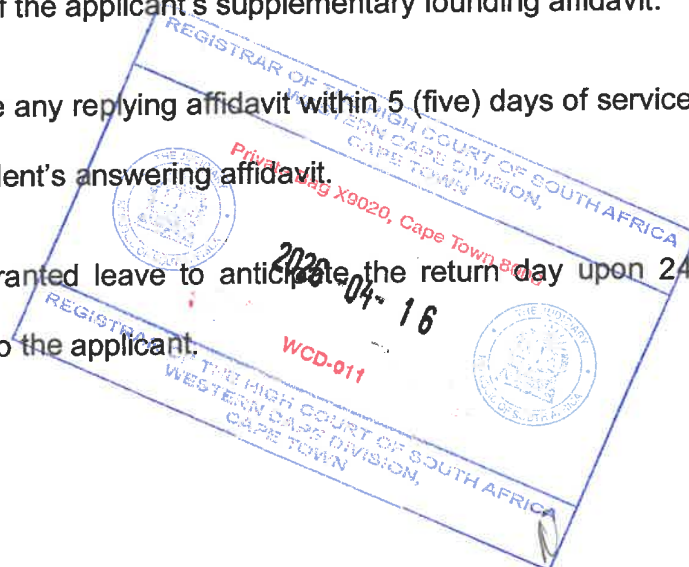
3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.

4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.

5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.

6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.

7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

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